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NC Department of Adult Correction
PROTECTION • INNOVATION
REHABILITATION

Roy Cooper, Governor | Todd Ishee, Secretary

**TO:** **All Central Engineering Staff**
**FROM:** **Jeffrey O'Briant, PE, PLS Director** JO 4/28/2023 | 16:25:18 EDT
**DATE:** **15 NOV 2018**
**REV:** **28 APR 2023**

**SUBJ:** **HUB Partnership and Inclusion Policy**
**Solicitation Actions for**
**Design and Professional Service Contracts**

Policy:
For every design or professional service agreement anticipated to award over $5000 on a project with a total value of $500,000 or less, Central Engineering staff developing, administering, or managing professional agreements shall:

- Select design and professional service provider based upon qualifications. *NOTE: Professional services shall never be bid, nor shall multiple competitive quotes be solicited.*

- Actively seek and solicit qualification information from potential HUB vendors for professional services. If, in the course of solicitation for professional services, there are no known HUB providers for that service; seek to find no less than one HUB firm to add as a service provider or document that none are available and qualified in the industry.

- Identify, refer, and encourage non-registered HUB vendors to contact the HUB Office for registration.

- Make every effort to retain HUB vendors for professional services when those vendors are qualified.

- Notify the Manager of Project Management of firms that can provide professional services. Provide the Manager of Project Management with qualification literature provided by professional service providers (e.g., statement of qualifications, service literature, Form 254).

- While professional services shall be retained based solely upon qualifications, manage procurement of professional services to achieve greater than 10% HUB participation.

- Exercise judgement and impart diversity in retaining professional services regardless of HUB qualification.

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For every design agreement anticipated on a project with a total value of $500,000 or greater, Central Engineering staff developing, administering, or managing design agreements shall:

- Select design services in accordance with State Construction Guidelines.
- Award design services in accordance with State Building Commission approval.

The Manager of Project Management shall:

- Maintain a network drive spreadsheet that identifies HUB firms based upon professional services. This spreadsheet shall include, name of firm, HUB status, services provided, and reviews.
- Maintain a network drive folder that contains qualification literature of professional service providers by category.

Roles and Expectations:
Any Central Engineering staff member intending to award a design or professional service agreement is defined as the Contract Administrator. Contract Administrators include, but are not limited to:

- Project Managers
- Regional Engineers
- Designers (functioning as PM)
- CAP Estimators
- CAP Trade Managers
- CAP Operations Managers

Definitions:
Design or Professional Service Agreements include the following professionally licensed practice areas:

- Architectural Services (RA)
- Engineering Services (PE)
- Surveying, GIS, or Photogrammetry Services (PLS)
- Geotechnical, Materials Testing, or Special Inspection Services (PE, PG)
- Landscape Architectural Services (RLA)
- Environmental Site Assessment Services (PE, PG)

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When used for a direct one-time support of a specific project, the following technical service agreements* are administered as professional services:

- Interior Design Services
- Industrial Hygiene Services
- Hazardous Material Abatement Design Services
- Hazardous Material Clearance Testing
- In-situ Measurement Services
- Specialized Camera Inspections
- Leak Detection
- Laboratory Testing
- Specialized Condition Assessment
- Aerial Photography Services
- Shop Drawing Services
- Drafting Services
- Commissioning Services
- Testing and Balancing Services
- Estimating Services
- Thermography Services

**When these services are required for an as-needed, recurring, or term contract, they are to be procured using Service Contracts through the NCDAC Purchasing Office.*
**These contracts are to be used for technical services only. The combination of technical services with a delivered construction, repair, assembly, or product is not permitted under a professional services agreement. For example, an asbestos abatement designer cannot conduct the physical asbestos abatement, a sewer camera inspector cannot make repairs to damages discovered, a controls consultant cannot install equipment, nor can a steel detailer provide fabrication. In some instances, the combination of technical services with a delivered construction, repair, assembly, or product is permitted under a Service Contract through the NCDAC Purchasing Office.*